

NON-DISCLOSURE AGREEMENT

This NON-DISCLOSURE AGREEMENT (hereinafter referred as the “Agreement”) is effective as of 10th January , 2025 (“Effective Date”), by and between Technip Energies India Limited, a corporation organized under the laws of India, having its principle place of business at Technip Tower, A-4, Sector -1, Noida - 201 301, Uttar Pradesh, India (“Technip Energies”) and GMM Pfaudler Limited, having its principal place of business at Vithal Udyognagar, Anand - Sojitra Road, Karamsad - 388325 (“Company”).

WHEREAS Technip Energies is interested in sharing selected information for and in relation to the provision of services for carrying out Engineering Procurement Construction and Commissioning (EPCC) work for a HP-Trijet unit, based on the technology developed by the HPCL (“Project”) whereas both the parties may share its technical and/or commercial information for the process of bidding for the Project & related activities (hereinafter referred as the “Disclosure Purpose”).

WHEREAS, Technip Energies may disclose valuable information to the other party and certain information so disclosed may be confidential. Accordingly, each Party agrees to the following terms and conditions:

1. Definition:

“Affiliate” means when used with reference to a Party, any person or entity directly or indirectly controlling, controlled by or under common control with such Party. For the purpose of this Agreement “control” means the direct or indirect ownership of at least fifty per cent (50%) of the paid-up equity share capital and/or outstanding voting securities of an entity, or at least fifty per cent (50 %) of the voting rights in such entity.

“Confidential Information” is defined as any information transmitted orally and/or in writing or other physical or electronic media, software or information in any format, disclosed to the Receiving Party by the Technip Energies relating to the Disclosure Purpose, which would be understood by a reasonable person to be considered as confidential, whether or not such information is marked as “confidential” at the time of disclosure include all the technical and commercial information including but not limited to design, drawings, specifications, processes, formulae, calculations, data, know-how, Samples, and the like furnished by Technip Energies to the Receiving Party during the project execution, whether orally or in documentary or tangible form. Any item, written information, software or electronic media may be brought within the scope of this Agreement by an accompanying letter to the Receiving Party identifying the particular item, written information, software or electronic media and claiming confidentiality with respect thereto. Confidential Information may include, without limitation: (a) proprietary financial, commercial and technical information disclosed by the Technip Energies to the Receiving Party in connection with the performance of the Disclosure Purpose concerning the Technip Energies and/or its activities; (b) the identity of or other pertinent information with respect to the actual or potential customers or customer contacts and customer sales strategies; (c) trade secrets, know-how, designs, methods, practices, procedures, processes and formulas with respect to manufacturing, assembly, installation, design, or processing the products and any component or part thereof; (d) sources of supply for products, components and services; (e) any other secret processes, formulas and methods, (f) photographs of equipment owned by Technip Energies and/or located at the Technip Energies’s facilities; (g) any information acquired from the observation of the Receiving Party, its agents or consultants in the office or other locations of the Technip Energies in relation to the Disclosure Purpose or the business of the Technip Energies; (h) this Agreement and its existence, as well as the nature and stage of the negotiations between the Parties; (i) means information which Technip Energies considers to be confidential in nature including but not limited to production processes, names of the microorganisms, chemicals, process conditions, nature of the ingredients, purpose of the product, production recipe, product nature, generic names of the product, CAS number of chemicals used for producing the product, marketing techniques and arrangements,

mailing lists, purchasing information, pricing policies, quoting procedure, financial information, customer and prospect names and requirements, employee, customer, supplier and distributor data, price lists, any other materials or information relating to any party's business and activities and the manner in which any party does business. Discoveries, concepts and ideas including, without limitation, the nature and results of research and development activities, processes, formulas, inventions, computer-related equipment or technology, techniques, know-how, designs, drawings and specifications (j) any reports, analyses, compilations, studies or other documents prepared by the Technip Energies, on behalf of or for the Receiving Party which contain, derive from or otherwise reflect any information described in (a) to (i) above.

2. **Enforcement:** All provisions of this Agreement shall also be applied to the Affiliates of the Parties. For the purposes of this Agreement, "Affiliate" of a Party shall mean any entity which, directly or indirectly, controls or is controlled by, or is under common control with, that Party, where control is (a) the possession, directly or indirectly, of the power to direct or cause the direction of the management or operating policies of the entity through the exercise of voting rights, contract, trust or otherwise, or (b) a right to appoint the majority of the directors of the entity, and "Affiliates" means any two or more of them.
3. **Non-disclosure and Restriction on Use.** The Receiving Party agrees to retain Confidential Information in confidence for a period of twenty (20) years from the expiry or termination of this Agreement and to exercise reasonable precautions to prevent unauthorized disclosure of the received Confidential Information to any third party, in whole or in part, and not to use the Confidential Information for any purpose other than in furtherance of the Disclosure Purpose, including the competition with the Technip Energies in any of its business. The Receiving Party will not reverse engineer, decompile, disassemble, modify, adapt, or create derivative works of the Confidential Information, or intentionally allow third parties to do so. The Receiving Party will not disclose the Confidential Information either in whole or in part, to any third party without the prior written consent of the Technip Energies. If the Receiving Party is authorized to disclose, it shall be a condition of such disclosure that prior to any disclosure, the third party enters into an appropriate agreement with the Receiving Party, whereby the terms of this Agreement shall be respected and agreed upon by said third party. In the event of loss or theft of any documents, items of work in progress, or any work products embodying Confidential Information by the Receiving Party, the Technip Energies must be notified immediately. With respect to any Samples that the Receiving Party may receive from Technip Energies, it is agreed by the Receiving Party (a) to hold such Samples in confidence and not to transmit such Samples to any third party, (b) not to analyse or reverse engineer or to have such Samples analysed, (c) not to sell or use such Samples either commercially or for any purpose not specifically contemplated by this Agreement. All Samples remaining after the purposes of the evaluation have been fulfilled shall be returned to Technip Energies, or destroyed, as instructed by Technip Energies.
4. **Reproduction of Confidential Information.** Neither Party shall reproduce copies of the Confidential Information (including using electronic means, such as screen captures) unless such duplication is a reasonable requirement for furtherance of the Disclosure Purpose.
5. **Disclosure of Confidential Information.** The Receiving Party shall limit dissemination of the Technip Energies' Confidential Information to such of its employees, officers, directors, and end Client or licensor who have a need to know in furtherance of the Disclosure Purpose. The Receiving Party shall have the right to disclose the Confidential Information to those employees only who may have a need to know such Confidential Information for the purpose stated hereinabove only and who accept and shall be bound by the same confidentiality obligations as laid down in this Agreement as the Receiving Party. The Receiving Party shall assume responsibility and accept liability for breach of the terms and conditions of this Agreement or non-fulfilment of these obligations from any such employee given access to the Confidential Information.

6. **Exceptions to Nondisclosure.** The Receiving Party shall not be subject to the obligations of this Agreement with respect to Confidential Information which:
- (a) is or becomes known publicly through no wrongful act of the Receiving Party; or
 - (b) was already known to the Receiving Party at the time of disclosure hereunder as shown by the Receiving Party's prior written records; or
 - (c) is learned by the Receiving Party from a third party under no obligation to the Technip Energies; or
 - (d) is independently developed by an employee, agent, or consultant of the Receiving Party with no knowledge of disclosures hereunder, or
 - (e) is approved for release by written authorization of the Technip Energies.
7. **No License or Right.**
- (a) No right or license, whether expressed or implied, in the Confidential Information is granted to the Receiving Party other than to use the Confidential Information in the manner and to the extent authorized by this Agreement. Receiving Party agrees that Confidential information is and shall at all times remain and/or be deemed to remain proprietary to the Technip Energies who is and shall be the sole owner of the rights of industrial or intellectual property relating thereto as, without limitation, patents, trademarks, design, patterns, methodologies, know-how, copyrights and other protected rights.
 - (b) The parties acknowledge that all kinds of rights including intellectual property rights, title, and interest in the Confidential Information shall be and remain the exclusive property of Technip Energies of such Confidential Information. Nothing in this Agreement is intended to give or shall be interpreted as giving the Receiving Party a license, express or implied, under any of purchaser's patents or other rights now owned or hereinafter acquired by Technip Energies.
 - (c) Any and all products, materials, concepts, ideas, changes, etc. which have emanated based on Technip Energies's Confidential Information is treated as Confidential and shall be sole property of Technip Energies including the intellectual property rights that emanate in relation to the purpose of this Agreement or otherwise.
 - (d) The Receiving Party acknowledges that Technip Energies will disclose the Confidential Information for the sole purpose of enabling the Receiving Party to evaluate Confidential Information for the Disclosure Purpose as stated in the preamble.
 - (e) The Receiving Party acknowledges and shall make sure that Confidential Information disclosed by Technip Energies shall not become part of patent applications or other rights the Receiving Party may apply for, without the prior written consent of Technip Energies.
 - (f) The Receiving Party agrees that in the event of a breach by it, including its agents, directors or employees, of the provisions of this Agreement, it may not be sufficient for Technip Energies to seek remedy in money damages and accordingly it shall be entitled to an injunction against such breach, in addition to any other legal or equitable remedies available to it. Receiving Party hereby agrees and undertakes to indemnify and hold Technip Energies harmless from any and all costs, liabilities, claims, losses, damages or expenses caused by or arising from Recipient's breach of its obligations under this Agreement.

- (g) The Technip Energies is disclosing Confidential Information solely on an “AS IS” basis with no warranties. Technip Energies shall not be liable for any damages, if any, arising out of the use of Confidential Information disclosed hereunder.
8. **Warranties.** The Technip Energies makes no representations or warranties, express or implied, as to the quality, accuracy and/or completeness of the Confidential Information disclosed hereunder. The Receiving Party agrees that the Technip Energies shall have no liability whatsoever with respect to the use of or reliance upon the Confidential Information by the Receiving Party.
9. **Return or Destruction of Confidential Information.** The Receiving Party agrees to promptly return to the Technip Energies or destroy, upon written request, all Confidential Information and all copies and notes thereon, regardless of the form of storage or retrieval and to certify, in writing that all Confidential Information and copies and notes thereon have been returned or destroyed. One or more electronic copies of the Confidential Information may be retained if the same is routinely captured in disaster recovery back-up systems.
10. **Confidential Information Exchange.** No Confidential Information shall be exchanged after the expiration of this Agreement, after the Parties abandon the Disclosure Purpose or any time after prior written notice is given by one Party to the other that the notifying party does not wish to receive or disclose any further Confidential Information, whichever occurs earlier.
11. **Publicity.** No information, release or public announcement or confirmation or denial of this Agreement will be made without prior coordination and the express written approval of the other Party.
12. **Non-Exclusivity.** This agreement does not limit or restrict the parties’ ability to engage in their respective businesses, nor does it prevent either party from pursuing similar discussions or transactions with third parties.
13. **Costs and Fees.** Unless otherwise agreed in writing, each party shall bear its own costs and expenses in connection with the Disclosure Purpose.
14. **Assignment.** Neither Party may assign or transfer its rights or obligations under this Agreement without the prior written consent of the other party. Any attempted assignment or transfer without such prior written consent will be void.
15. **Legally compelled disclosure.** In the event, the Receiving Party becomes legally compelled (by deposition, interrogatory, request for documents, order, subpoena, civil investigative demand or similar process issued by a court of competent jurisdiction or by a government body) to disclose any of the Confidential Information, prompt prior written notice of any such requirement shall be provided to the Technip Energies, unless prohibited from doing so by law so that the Technip Energies may seek a protective order or other appropriate remedy and/or waive compliance with the terms of this Agreement. In the event, such protective order or other remedy is not obtained, and irrespective of whether compliance with the provisions hereof is waived, the Receiving Party shall cause to be disclosed only that portion of the Confidential Information which in the opinion of the Receiving Party’s legal counsel, Receiving Party is compelled to disclose.
16. **Equitable Remedy.** The parties each recognize that a breach of this Agreement may cause irreparable harm to the other party and that actual damages may be difficult to ascertain and, in any event, may be inadequate. Accordingly, the parties agree that in the event of such breach, the injured party may be entitled to injunctive relief in addition to such other legal or equitable remedies as may be available. The Receiving Party shall be liable to each other for the performance of the Agreement and also shall hold each other unconditionally harmless from any possible claims brought by third parties against either party in connection with the performance of this Agreement. Further, Receiving Party shall reimburse, indemnify and hold harmless the other party and the end

Client from any direct damage, loss, penalty, cost or Confidential Information contrary to the terms of this Agreement by Receiving Party or its Affiliates, employees, directors, officers, owners, consultants, agents or representatives or any others to whom such Confidential Information has been disclosed by any such persons or entities.

17. **Controlling Law.** This Agreement shall be governed and interpreted in accordance with the laws of India. In the event of any dispute or difference arising out of, or relating to this Agreement, or the breach thereof, the parties shall be free to settle their dispute by arbitration in accordance with the rules of the The Arbitration and Conciliation Act, 1996. The place for any such arbitration shall be at New Delhi, India. The arbitration proceedings shall be conducted in English. The award of the arbitration shall be final and binding on both the Parties.
18. **Trade Control Compliance.** The Parties acknowledge that the disclosure of Confidential Information under this Agreement may be subject to governmental laws, regulations, decrees and orders issued by (i) the United Nations, (ii) the United States of America, (iii) the European Union or any of its Member States, (iv) the United Kingdom or any other jurisdiction relevant to this Agreement that may directly or indirectly sanction, prohibit or restrict certain activities including, but not limited to, (i) import, export, re-export, transfer, or trans-shipment of goods, services, technology, or software and/or (ii) financing of, investment in, or direct or indirect transactions or dealings with certain countries, territories, regions, governments, projects, or specifically designated persons or entities ("Trade Control Laws"). The Parties agree to comply with and shall not knowingly breach or cause another Party to breach, any applicable Trade Control Laws in connection with Confidential Information supplied under this Agreement. The Parties shall not be liable to any other party for any inability to supply Confidential Information in connection with this Agreement as a result of its compliance with applicable Trade Control Laws. This clause shall survive the termination or expiry of this Agreement.
19. **Term.** This Agreement shall remain in force for a period of three (3) years from the Effective Date. However, the obligations of non-disclosure and non-use shall extend beyond the expiration or termination of this Agreement for the period specified in paragraph 3, above.
20. **Counterparts.** This Agreement may be executed in any number of counterparts and by the parties hereto in separate counterparts, each of which when so executed shall be deemed to be an original and all of which taken together shall constitute one and the same agreement.
21. **Entire Agreement.** This Agreement contains the entire and complete agreement between the Parties, and supersedes any and all prior understandings, promises, representations, and agreements, oral or written, with respect to the Disclosure Purpose. No modification, change, or waiver of this Agreement shall be valid unless made in writing and signed by authorized representatives of the Parties. This Agreement does not obligate the Parties to enter into negotiations or any subsequent agreement.

IN WITNESS WHEREOF, the parties have caused this Agreement to be executed by their duly authorized representatives as of the date last signed below.

FOR Technip Energies:

(signature)

By: _____

FOR Company:

ASEEM KULDIP JOSHI

(signature)

By: Aseem Joshi

Digitally signed by ASEEM
KULDIP JOSHI
Date: 2025.01.10 11:01:47
+05'30'



NDA No.105632/2024

Title: _____

Title: CEO

Dated: _____

Dated: 10/01/2025

Requested by: _____